***This form has NIXI connection agreements for both ISP and Non-ISP.**
Please fill whichever is applicable

NIXI Connection Agreement

This Agreement is executed on this …. day of …….

Between

…….. With Registered Office at**----------**
*hereinafter referred to as **"Member"***

AND

The Chief Executive Officer, National Internet Exchange of India,
B-901, 9th Floor Tower B, World Trade Centre, Nauroji Nagar, New Delhi-110029 India
*hereinafter referred to as **"NIXI"***

WHEREAS NIXI is established to be a neutral Internet Exchange facilitating the ISPs to interconnect with each other for efficient routing of domestic traffic.

AND WHEREAS the Member is an ISP duly licensed by DoT Government of India.

WHEREAS a member can also be a Non-ISP (CDN provider, Content player) member having valid AS number.

NOW the Member and NIXI agree as follows:

1. Definitions

"ASN" means Autonomous System Number, which is a globally unique identifier for Autonomous Systems. An Autonomous System (AS) is a group of IP networks having a single clearly defined routing policy, run by one or more network operators.

"**AS**" shall mean Autonomous System.

"BGP" means Border Gateway Protocol which is a protocol for exchanging routing information between gateway hosts (each with its own router) in a network of autonomous systems. BGP is often the protocol used between gateway hosts on the Internet. The routing table contains a list of known routers, the addresses they can reach, and a cost metric associated with the path to each router so that the best available route is chosen.

“Connection for member” means the physical connection of the peering router/cache of member to the NIXI shared medium (e.g. LAN switch), which is not allowed to go beyond the premises of the respective Housing site.

“Core Area” is the Room, cage or otherwise dedicated and separated rack space at the Housing Site where the NIXI equipment (e.g. LAN switch) is located.

“**CDN**” shall mean Content Delivery Network.

“Housing/Collocation Site for Member” is the Physical location at which the NIXI is present, and where the peering router/server is located.

“Member” is an ISP as well as a Non-ISP who wants to connect to NIXI and avail of its services under the terms and conditions of this agreement.

“Member Equipment” is any equipment owned by, leased to, or otherwise controlled by a Member, who is here referred to as the 'owner' irrespective of the actual method of control.

“ISP” shall mean an Internet Service Provider, having valid ISP License issued by DoT, Government of India. The term ISP shall include those Internet Service Providers also who have got their License amended for providing Internet Telephony.

“**Non-ISP**” shall mean CDN provider, Content player having valid AS Number.

2. <u>Services provided by NIXI to Member</u>

NIXI shall:

a) Facilitate the connection for member through collocation provider.
b) Provide rack space to the member at its site.
c) Allow access to the core area only to authorized personnel of member under super- vision and authorization of NIXI.
d) Provide 24 x 7 watch of the member equipment through NIXI collocation provider.
e) Facilitate installation & support services.
f) Facilitate network management related services.
g) Provide any other services as decided by NIXI management.

3. <u>Responsibilities of Member:</u>

Member shall:

a) make payments to NIXI as per the Financial Schedule as applicable to the Member by the due date. No refund of charges will be made under any circumstances.
b) at his own cost ensure the faultless connection of its Network through Leased line (or any other connecting medium such as Radio link, VSAT, Fiber, ATM, Frame relay etc.) to the NIXI network, as per the Technical Requirements of NIXI.
c) be solely responsible for all charges (including insurance, maintenance, repairs, configuration, operation etc) related to the Member Equipment.

d) provide 24x7 operational contact details for the use of NIXI staff and other NIXI Members as required by NIXI.
e) ensure that its usage of the Connection / NIXI's network is not detrimental in any way and does not cause damage to the NIXI network / infrastructure or to the usage of NIXI by the other Members or to the traffic exchange thereon.
f) Insure its equipment (including third party insurance) while it is in the NIXI racks.
g) Not hold NIXI responsible for the content of its traffic being transmitted through NIXI net- work.
h) Be solely responsible for the member's own violation of the conditions of ISP Li- cense(s) issued by the (DoT) Department of Telecom, Government of India under which he is authorized to provide Internet Services and connect to NIXI (Applicable for ISP members Only).
i) Non-ISP Member shall be solely responsible for violation of any of the prevailing the laws.

4. <u>Connecting Rules at NIXI to be adhered by Member:</u>

a) Members shall have an ASN (Autonomous System Number) and use BGP4(+) for peering.
b) The Autonomous System Number, which the Member provides to NIXI, should be vis- ible from the NIXI router.
c) Member shall not handover any third party traffic and advertise its own traffic.
d) Member shall handover its traffic to the NIXI PoP which is nearest to the destination of the traffic.
e) Member may allow other ISP's to connect to NIXI and handover their traffic through its own facilities. Member in that case will advertise the ASN of such ISPs connecting through it. Member shall have its own agreement with the ISPs connected through it, requiring such ISPs to adhere to the terms and conditions of this Agreement.
f) Member shall not use NIXI Services to carry out any illegal or unauthorized activities.
g) Members will be allowed to do bilateral peering/transit amongst themselves without using the NIXI switches or any other NIXI networking equipment.

5. <u>Peering Policy of NIXI</u>

NIXI has adopted forced multilateral peering policy. Members shall not refuse to accept traffic from other members.

6. <u>NON COMPETE</u>

NIXI is a neutral Internet Exchange facilitating the members to interconnect with each other for efficient routing of domestic traffic and shall not compete with the business of other members.

7. Membership Status

Submission of this Agreement along with the Connection form does not guarantee membership to NIXI. The membership shall be deemed to be granted only after the application and agreement is approved by the NIXI board. On granting of the membership, the Member shall be entitled to all the rights described in the Bye-Laws / Articles of Association of NIXI including offering candidature to be elected on NIXI Board as and when permissible.

8. Warranties & Representations

Member represents that it possesses a valid License issued by the Department of Telecom (DoT), to provide Internet Services, a copy of which has been provided to NIXI along with this Agreement (Applicable to ISP members only).

Non-ISP Member warrants and represents that the member is legally and validly doing his business of rendering services under the prevailing laws.

NIXI represents that it is a neutral Internet Exchange facilitating the member ISPs/NonISPs to interconnect with each other for efficient routing of domestic traffic, a copy of which has been provided to the Member.

9. Non-compliance

Any Violation of the provisions of this agreement including the Payment schedule and technical requirement may result in immediate disconnection from the Services, termination of member- ship, financial penalties or any other action at the sole discretion of the NIXI Board.

10. Fee & Mode of Payment

Member is liable to make payments of the dues by the due dates in accordance with the Rout- ing and Tariff Policy as applicable and amended from time to time. Non-payment of the dues by the due date will be deemed to be non-compliance of the terms of this agreement.

11. Intellectual Property Rights

All logos, trademarks, copyrights and other intellectual property rights remain the property of its respective owners. This Agreement in no way grants any right to a party to use the intellectual property of the other party.

12. Insurance and Liability

NIXI shall take all precautions to ensure that no damage is caused to the Member Equipment; however, NIXI shall not be liable for any loss or damage, howsoever caused, to the Member Equipment. Member is solely responsible to get its equipment insured.

13. TERM and TERMINATION

This Agreement shall come into force upon approval by the Board of NIXI or personnel duly authorized by NIXI Board for this purpose and shall remain in force until its termination in accordance with the provisions of this Agreement.

Either Party may terminate this Agreement by giving a written notice of 3 Calendar months to the other.

Notwithstanding anything said in this Agreement NIXI reserves the right to immediately disconnect a member and suspend services to it at any time on having reasonable knowledge of any violation of this Agreement or other terms and conditions that will be communicated to the Member from time to time by NIXI.

14. Severability

If any provision of this Agreement is found invalid or unenforceable, that provision will be enforced to the maximum extent permissible and the other provisions of this Agreement will remain in force unaffected.

15. Relationship

The parties are independent contractors and will have no power or authority to assume or create any obligation or responsibility on behalf of each other. This Agreement will not be construed to create or imply any partnership, agency or joint venture between the parties.

16. Force Majeure

If performance of either party is prevented because of the occurrence of force majeure or un- foreseen circumstances, beyond the reasonable control of the parties, such occurrence shall not constitute a breach of this agreement.

17. Indemnity

The Parties to this Agreement shall indemnify and hold each other harmless from and against all direct, indirect, incidental or consequential liabilities, demands, losses, costs and actual expenses suffered or incurred by or awarded against either Party in consequence of or arising out of any actions of the other Party that is in breach of its obligations, warranties, representations under this agreement or are otherwise in violation of the existing laws.

The Officers, employees, personnel, etc. of NIXI shall not be personally liable under any circumstances.

18. Dispute Resolution & Applicable Law

Any disputes arising out of this agreement shall be resolved through arbitration, conducted in accordance with the provisions of Indian Arbitration and Conciliation Act 1996.The award rendered by the arbitrator shall be final & binding upon the parties. The venue of arbitration shall be New Delhi and for all further legal proceedings pertaining to the terms and conditions enshrined in the agreement, the jurisdiction shall be Delhi Court. The cost of arbitration shall be borne equally by both the parties. Indian laws will be applicable in case of any dispute.

OVERRIDING EFFECT of this Agreement: -

"In case of any repugnance with any other Agreement/Supplementary Agreement, etc., the instant main NIXI Agreement shall prevail and will have superseding effect.**"**

The authorized signatories of the Parties have set their hands on the date mentioned herein-above.

For NIXI:	**For Member:** ISP/CDN, Content Provider, Non-ISP:
Signature:	Signature:
Name:	Name:
Title:	Title:
Date:	Date: